RECALLING article 28(b) of the Convention on the International Maritime Organization con
cerning the functions of the Committee, RECALLING ALSO that the International Conference
on the Safety of Fishing Vessels, 2012 (the Conference) had adopted the Cape Town Agreem
ent of 2012 on the Implementation of the Provisions of the Torremolinos Protocol of 1993
relating to the Torremolinos International Convention for the Safety of Fishing Vessels,
1977 (the Agreement), RECALLING FURTHER that the Conference, when adopting the Agreement
, requested the --- URL: https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/Indexo
fIMOResolutions/MSCResolutions/MSC.571(109).pdf RECALLING FURTHER that the Conference, w
hen adopting the Agreement, requested the Organization to intensify its efforts to provi
de Parties and Member States with the assistance they might need in implementing the Agr
eement, RECOGNIZING that the entry into force and implementation of the Agreement will m
ake a significant contribution to the safety of fishing vessels, RECOGNIZING ALSO the ne
ed to provide guidance for a unified implementation to those States that have already be
come Parties to the Agreement or are in the process thereof, RECALLING resolution A.1186
(33) on the Survey guidelines under the harmonized system of survey and certification (H
SSC), 2023, which provides guidance for conducting surveys required by relevant IMO inst
ruments, HAVING CONSIDERED, at its 109th session, the recommendation made by the Sub - C
ommittee on Implementation of IMO Instruments, at its tenth session, 1 ADOPTS the Interi
m guidance to assist in the implementation of the Cape Town --- URL: https://wwwcdn.imo.
org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).
pdf 1 ADOPTS the Interim guidance to assist in the implementation of the Cape Town Agree
ment of 2012 (the Interim Guidance), set out in the annex to the present resolution; 2 I
NVITES Parties and Member States concerned to: .1 follow the Interim Guidance on how to
comply with the requirements set forth in the Agreement for a harmonized implementation;
.2 consider its provisions when developing national legislation governing fishing vessel
safety; .3 consider establishing appropriate measures in order to ensure that compliance
of existing fishing vessels with the relevant requirements of the Agreement is documente
d, as appropriate; and .4 consider paying particular attention to the case where a flag
State has a pre-existing safety standard which is higher than the Agreement and, in such
circumstances, the higher national standards should be retained for that State.

MSC RESOLUTION MSC.571(109) (adopted on 6 December 2024) --- URL: https://wwwcdn.imo.org
/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf
circumstances, the higher national standards should be retained for that State.

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09).pdf of Fishing Vessels, 1977 COLREG 1972 Convention on the International Regulations
for Preventing Collisions at Sea, 1972 EEZ Exclusive economic zone FAO Food and Agricult
ure Organization of the United Nations IFVSC International Fishing Vessel Safety Certifi
cate GMDSS Global Maritime Distress and Safety System HSSC Harmonized System of Survey a
nd Certification ILO International Labour Organization ITU RR Radio Regulations of the I
nternational Telecommunication Convention LL 66 Convention International Convention on L
oad Lines, 1966 MoU Memorandum of Understanding Organization International Maritime Orga
nization (IMO) PSC Port State Control PSCO Port State Control Officer RO Recognized Orga
nization SOLAS 74/88 International Convention for the Safety of Life at Sea (SOLAS), 197
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IN THE IMPLEMENTATION OF THE CAPE TOWN AGREEMENT OF 2012 MSC 109/22/Add.2 Annex 25, page
5 I:\MSC\109\WP\MSC 109-22-Add.2.docx PREFACE The safety of large fishing vessels is a k
ey priority for the Parties and Member States of the International Maritime Organization
(IMO).

The first attempt to regulate this larger fishing vessel sector at the Organization led
to the adoption of the Torremolinos International Convention for the Safety of Fishing V
essels, 1977.

During the 1980s it became clear that an insufficient number of countries were ever goin
g to ratify the Convention.

This led to the adoption of the T orremolinos Protocol of 1993 relati ng to the Torremol
inos International --- URL: https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/Ind
exofIMOResolutions/MSCResolutions/MSC.571(109).pdf adoption of the T orremolinos Protoco
l of 1993 relati ng to the Torremolinos International Convention for the Safety of Fishi
ng Vessels, 1977 (1993 Torremolinos Protocol).

Again, the rate of ratifications was insufficient to allow the 1993 Torremolinos Protoco
l to enter into force.

This was further amended by the Cape Town Agreement of 2012 and this Interim Guidance is
intended to assist Parties and Member States in ratifying and implementing this Agreemen
t.

This Interim Guidance sets out advice for Parties and Member States who may have already
ratified the Agreement as well as for those who have not yet done so.

It also contains Interim Guidance for Parties and Member States who have pre -existing h
igher safety standards and how these can be safeguarded.

The Interim Guidance is structured in two parts.

Part A deals with the articles of the Agreement and the technical chapters of the annex
to the Agreement.

Part B of the Interim Guidance --- URL: https://wwwcdn.imo.org/localresources/en/Knowled
geCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf and the technical chapter
s of the annex to the Agreement.

Part B of the Interim Guidance contains additional information which, while not forming part of the Agreement, is provided for the information of Parties and Member States.

The Interim Guidance also contains a number of appendices which may be helpful.

It is the prerogative of each ratifying Party to implement the requirements of the Agree ment in accordance with its own national legal framework as well as the operational arra ngements applicable within its jurisdiction.

MSC RESOLUTION MSC.571(109) (adopted on 6 December 2024) INTERIM GUIDANCE TO ASSIST IN T HE IMPLEMENTATION OF THE CAPE TOWN AGREEMENT OF 2012 MSC 109/22/Add.2 Annex 25, page 6 I :\MSC\109\WP\MSC 109-22-Add.2.docx PART A INTERIM GUIDANCE FOR IMPLEMENTATION SECTION 1 GENERAL ASPECTS 1.1 Introduction 1.1.1 The Cape Town Agreement of 2012 on the Implementa tion of the Provisions of the --- URL: https://wwwcdn.imo.org/localresources/en/Knowledg eCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf SECTION 1 GENERAL ASPECTS 1.1 Introduction 1.1.1 The Cape Town Agreement of 2012 on the Implementation of the Prov isions of the Torremolinos Protocol of 1993 relating to the Torremolinos International C onvention for the Safety of Fishing Vessels, 1977 (hereinafter referred to as "the Agree ment "), is the only internationally updated and binding instrument that addresses the d esign, construction and equipment of fishing vessels.

It is recognized that the entry into force and implementation of the Agreement would mak e a significant contribution to the safety of ships in general and the safety of fishing vessels in particular.

1.1.2 The Interim Guidance aims to assist Parties and Member States in effectively imple menting the provisions of the Agreement into their national laws, regulations and other measures.1 1.1.3 In addition to the Interim Guidance, chapters 2 and 3 of the Implementa tion Guidelines --- URL: https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/Indexo fIMOResolutions/MSCResolutions/MSC.571(109).pdf measures.1 1.1.3 In addition to the Inte rim Guidance, chapters 2 and 3 of the Implementation Guidelines on part B of the Code, t he Voluntary Guidelines and the Safety Recommendations provide guidance related to admin istrative requirements and legal implications, respectively, which may also be useful to Administrations when developing their own laws and regulations or other measures for the safety of fishing vessels, including those related to the implementation of the Agreemen t.

Furthermore, part B of the Code of Safety for Fishermen and Fishing Vessels , 2005 Editi on would serve as a guide for Administrations in developing provisions for vessels of 24 metres in length and over but less than the length limit prescribed in chapters IV, V, V II and IX of the Agreement, as called for in paragraphs (4) and (5) of article 3 of the 1993 Torremolinos Protocol.

1.2 Purpose 1.2.1 The main purpose of the Interim Guidance is to assist Parties and Memb er States in --- URL: https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIM OResolutions/MSCResolutions/MSC.571(109).pdf Torremolinos Protocol.

1.2 Purpose 1.2.1 The main purpose of the Interim Guidance is to assist Parties and Memb er States in the implementation of the provisions of the Agreement.

It is therefore expected that Member States which are planning to deposit an instrument of ratification, acceptance, approval or accession, as appropriate, of the Agreement cou ld benefit from this Interim Guidance.

1 The Interim Guidance may be applied in recognition of the broader international duties and obligations of Parties, Member States and flag States regarding the flagging and con trol of fishing vessels, together with their responsibilities to manage fishing and fish ing -related activities in a manner that ensures the conservation and sustainable use of living marine resources and ensuring decent onboard working and living conditions for fi shing vessel personnel.

Parties, Member States and flag States may, in this regard, be guided by the following i nstruments, inter alia: --- URL: https://wwwcdn.imo.org/localresources/en/KnowledgeCentr e/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf guided by the following instrume nts, inter alia: .1 ILO's Guidelines on flag State inspection of working and living cond itions on board fishing vessels; .2 FAO Code of conduct for responsible fisheries (artic le 8 – fishing operations); .3 FAO Agreement on Port State Measures to Prevent, Deter an d Eliminate Illegal, Unreported and Unregulated Fishing (PSMA); .4 FAO Voluntary guideli nes for flag state performance of 2014; .5 FAO/ILO/IMO Implementation Guidelines on part B of the Code, the Voluntary Guidelines and the Safety Recommendations; .6 FAO/ILO/IMO C ode of Safety for Fishermen and Fishing Vessels, part B; and .7 FAO Technical guidelines on best practices to improve safety at sea in the fisheries sector.

MSC RESOLUTION MSC.571(109) (adopted on 6 December 2024) INTERIM GUIDANCE TO ASSIST IN T HE IMPLEMENTATION OF THE CAPE TOWN AGREEMENT OF 2012 MSC 109/22/Add.2 Annex 25, page 7 I :\MSC\109\WP\MSC 109-22-Add.2.docx --- URL: https://wwwcdn.imo.org/localresources/en/Kno wledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf CAPE TOWN AGREEMENT O F 2012 MSC 109/22/Add.2 Annex 25, page 7 I:\MSC\109\WP\MSC 109-22-Add.2.docx 1.2.2 The I nterim Guidance highlights the benefits of ratification or accession, as appropriate, an d the flexible mechanism established for implementation, in particular on existing fishi ng vessels.

1.2.3 The Interim Guidance also provides useful information to stakeholders in the indus try, such as fishing vessel owners, fishing vessel personnel, shipyards and equipment ma nufacturers, on how to comply with the requirements set forth in the Agreement.

It also addresses other relevant issues, such as the human element and the guiding princ iples of the III Code.

1.2.4 Parties and Member States which already have a higher standard than prescribed in the Agreement, because they have implemented the provisions of the 1993 Torremolinos Pro tocol or a regional agreement for example, should not lower their standards when --- URL : https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCReso lutions/MSC.571(109).pdf Protocol or a regional agreement for example, should not lower their standards when implementing the provisions of the Agreement.

They should ensure that they do not take any actions which may inadvertently undermine t heir pre-existing higher standards.

1.3 Scope 1.3.1 The Interim Guidance provides a clear distinction between the technical requirements applicable to new and those applicable to existing vessels.

1.3.2 The Agreement offers a wide range of flexibility in terms of implementation and ap plication.

The Interim Guidance provides information on available flexibility options for both new and existing fishing vessels, and, in particular, on options that are related to progres sive implementation of provisions on existing fishing vessels.

1.3.3 This Interim Guidance covers areas like definitions, interpretation and applicatio n of the articles of the Agreement and the 1993 Torremolinos Protocol as well as applica tion, --- URL: https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolu tions/MSCResolutions/MSC.571(109).pdf the articles of the Agreement and the 1993 Torremo linos Protocol as well as application, exemptions, equivalents, surveys and certificates .

There is a dedicated appendix dealing with the system of survey and certification, based on the structure of the Survey guidelines under the harmonized system of survey and cert ification (HSSC) , 2023, adopted by resolution A.1186(33).

It is noted that the Agreement is currently not a relevant instrument of the HSSC.

1.3.4 Summary assistance tables for implementation have been inserted at the end of each section of part A and at the end of section 8 of part B of the Interim Guidance with the aim of facilitating the implementation of the Agreement.

For reference, the responsibilities under the capacities as flag, port or coastal States in relation to the relevant provisions have been included.

In addition, other supportive tools have been included for interest and assistance.

--- URL: https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/ MSCResolutions/MSC.571(109).pdf included.

In addition, other supportive tools have been included for interest and assistance.

1.3.5 The Interim Guidance provides information regarding some of the benefits of ratifi cation, acceptance, approval or accession, as appropriate, and implementation of the Agr eement.

This includes the expected reduction of accidents and in particular collisions within th e waters of the flag State, the reduction of potential costs of search and rescue operat ions and pollution risks, with a positive impact on the national economy, resources and the environment.

1.3.6 Additionally, to assist Parties, Member States and stakeholders in the industry, t he appendices provide guidelines for flag States, including abandon ship training and dr ills, radio equipment, shipborne navigational equipment, fire -fighting measures and lif e -saving appliances summary tables.

MSC RESOLUTION MSC.571(109) (adopted on 6 December 2024) INTERIM GUIDANCE TO ASSIST IN T HE IMPLEMENTATION OF THE --- URL: https://wwwcdn.imo.org/localresources/en/KnowledgeCent re/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf appliances summary tables.

MSC RESOLUTION MSC.571(109) (adopted on 6 December 2024) INTERIM GUIDANCE TO ASSIST IN T HE IMPLEMENTATION OF THE CAPE TOWN AGREEMENT OF 2012 MSC 109/22/Add.2 Annex 25, page 8 I :\MSC\109\WP\MSC 109-22-Add.2.docx 1.3.7 Member States ratifying or acceding to the Agre ement need to ensure the provisions of the Agreement are reflected in their national law .

This should also be supplemented by implementation measures.

Parties should also ensure that there is coherence with th eir existing body of fishing vessel safety legislation and that there is a clear set of requirements communicated to the sector.

Particular attention should be given to the case where a flag State has a pre -existing safety standard which is higher than the Agreement and, in such circumstances, the highe r national standards should be retained for that State.

It is also important that any conflict of laws is avoided in such situations and that th ere is clarity for the --- URL: https://wwwcdn.imo.org/localresources/en/KnowledgeCentre /IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf important that any conflict of la ws is avoided in such situations and that there is clarity for the industry as to what s tandards apply.

1.3.8 Parties should provide for measures to ensure compliance with the provisions of th e Agreement to ensure effective enforcement of the Agreement.

SECTION 2 OVERVIEW OF THE AGREEMENT 2.1 Application and entry-into-force criteria of the Agreement 2.1.1 Unless expressly provided otherwise, the provisions of the Agreement app ly to new fishing vessels of 24 metres in length and over.

2.1.2 The Agreement applies to seagoing fishing vessels including vessels also processin g their catch entitled to fly the flag of a Party.

Its provisions do not apply to vessels exclusively used: .1 for sport or recreation; .2 for processing fish or other living resources of the sea; .3 for research and training; or .4 as fish carriers.

2.2 Structure of the Agreement --- URL: https://wwwcdn.imo.org/localresources/en/Knowled geCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf .3 for research and train ing; or .4 as fish carriers.

2.2 Structure of the Agreement 2.2.1 The Agreement , which updates and amends a number o f provisions of the 1993 Torremolinos Protocol, consists of articles, an annex and an ap pendix as follows: ARTICLES OF THE AGREEMENT Article 1 – General obligations2 Article 2 – Interpretation and application of the 1993 Torremolinos Protocol and the 1977 Torremol inos Convention3 Article 3 – Signature, ratification, acceptance, approval and accession Article 4 – Entry into force 2 Article 1 provides information to the Parties to the Agre ement on general obligations.

It also states that the annex to the Agreement shall constitute an integral part of the Agreement and a reference to the Agreement shall constitute at the same time a reference to the annex thereto.

3 Article 2 clarifies that articles 2 to 8 inclusive and articles 11 to 14 inclusive of the 1993 Torremolinos Protocol --- URL: https://wwwcdn.imo.org/localresources/en/Knowled geCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf 3 Article 2 clarifies tha t articles 2 to 8 inclusive and articles 11 to 14 inclusive of the 1993 Torremolinos Pro tocol shall apply to the Agreement.

In applying these articles, the regulations in the annex to the 1993 Torremolinos Protoc ol, and the regulations in the annex to the 1977 Torremolinos Convention, a reference to "the present Protocol", or to "the Convention", respectively, shall be deemed to mean a reference to the Agreement.

(See also articles of the 1993 Torremolinos Protocol relating to the Agreement).

MSC RESOLUTION MSC.571(109) (adopted on 6 December 2024) INTERIM GUIDANCE TO ASSIST IN T HE IMPLEMENTATION OF THE CAPE TOWN AGREEMENT OF 2012 MSC 109/22/Add.2 Annex 25, page 9 I :\MSC\109\WP\MSC 109-22-Add.2.docx ARTICLES OF THE 1993 TORREMOLINOS PROTOCOL RELATING T O THE AGREEMENT Article 1 – General obligations Article 2 – Definitions Article 3 – Appl ication Article 4 – Certification and port State control4 Article 5 – Force majeure --- URL: https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCR

esolutions/MSC.571(109).pdf Article 2 – Definitions Article 3 – Application Article 4 – Certification and port State control4 Article 5 – Force majeure Article 6 – Communicatio n of information Article 7 – Casualties to fishing vessels5 Article 8 – Other treaties a nd interpretation Article 11 – Amendments Article 12 – Denunciation Article 13 – Deposit ary Article 14 – Languages ANNEX – REGULATIONS FOR THE CONSTRUCTION AND EQUIPMENT OF FIS HING VESSELS Chapter I – General provisions Chapter II – Construction, watertight integr ity and equipment Chapter III – Stability and associated seaworthiness Chapter IV – Mach inery and electrical installations and periodically unattended machinery spaces Part A – General Part B – Machinery installations Part C – Electrical installations Part D – Peri odically unattended machinery spaces 4 Interim Guidance regarding article 4 of the 1993 Torremolinos Protocol is provided under section 6.

--- URL: https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/ MSCResolutions/MSC.571(109).pdf 4 Interim Guidance regarding article 4 of the 1993 Torre molinos Protocol is provided under section 6.

5 Interim Guidance regarding article 7 of the 1993 Torremolinos Protocol is provided und er section 8.

MSC RESOLUTION MSC.571(109) (adopted on 6 December 2024) INTERIM GUIDANCE TO ASSIST IN T HE IMPLEMENTATION OF THE CAPE TOWN AGREEMENT OF 2012 MSC 109/22/Add.2 Annex 25, page 10 I:\MSC\109\WP\MSC 109-22-Add.2.docx Chapter V – Fire protection, fire detection, fire ex tinction and fire fighting Part A – General Part B – Fire safety measures in vessels of 60 metres in length and over Part C – Fire safety measures in vessels of 45 metres in le ngth and over but less than 60 metres Chapter VI – Protection of the crew Chapter VII – Life-saving appliances and arrangements Part A – General Part B – Vessel requirements Pa rt C – Life-saving appliances requirements Chapter VIII – Emergency procedures, musters and drills --- URL: https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOR esolutions/MSCResolutions/MSC.571(109).pdf Part B – Vessel requirements Part C – Life-sa ving appliances requirements Chapter VIII – Emergency procedures, musters and drills Cha pter IX - Radiocommunications Part A – Application and definitions Part B – Ship require ments Chapter X – Shipborne navigational equipment and arrangements APPENDIX – CERTIFICA TES AND RECORD OF EQUIPMENT 1 Form of Safety Certificate for Fishing Vessels 2 Form of E xemption Certificate 3 Form of Supplement to the International Fishing Vessel Safety Cer tificate SECTION 3 APPLICATION AND SURVEYS 3.1 Application, exemptions and equivalents (regulations I/1 to 5) 3.1.1 Application: Unless expressly provided otherwise, the provis ions of chapter I apply to new vessels.

Notes: 1.

Administrations may decide to use gross tonnage (GT) in place of length (L) as the basis for measurement for all chapters.

For those Administrations, the Agreement will not apply to vessels --- URL: https://wwwc dn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.57 1(109).pdf measurement for all chapters.

For those Administrations, the Agreement will not apply to vessels of less than 300 GT (regulation I/1(2) to (3)).

2.

Where a Party has concluded that it is not immediately possible to implement all of the measures provided for in chapters VII, VIII, IX and X on existing vessels, the Party may , in accordance with a plan, progressively implement the provisions of these chapters ov er a period of up to five or 10 years, depending on the chapter (regulation I/1(4) to (5)).

3.

The Agreement offers several possibilities to Administrations to exempt vessels from its requirements.

Administrations may, for example, exempt any vessel from any of the requirements of all chapters of the Agreement, provided the vessel complies with adequate safety requirement s to ensure the overall safety of the vessel and persons on board and that the vessel is not operating on the high seas (regulation I/3(3)).

MSC RESOLUTION MSC.571(109) (adopted on 6 December 2024) --- URL: https://wwwcdn.imo.org /localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf on the high seas (regulation I/3(3)).

MSC RESOLUTION MSC.571(109) (adopted on 6 December 2024) INTERIM GUIDANCE TO ASSIST IN T HE IMPLEMENTATION OF THE CAPE TOWN AGREEMENT OF 2012 MSC 109/22/Add.2 Annex 25, page 11

I:\MSC\109\WP\MSC 109-22-Add.2.docx CHAPTER I GENERAL PROVISIONS – SUMMARY 3.1.2 Chapter I deals with general matters, surveys and certification.

It contains general provisions for: .1 application (regulation 1); .2 definitions (regul ation 2); .3 exemptions (regulation 3); .4 equivalents (regulation 4); and .5 repairs, a lterations and modifications (regulation 5).

GUIDANCE FOR IMPLEMENTATION Tonnage/length equivalents (regulations I/1(2) to (3)) 3.1.3 All chapters of the Agreement use vessel length (L) as the basis for measurement.

However, many flag Administrations use vessel gross tonnage in their national legislatio n for that purpose and may wish to use it when implementing the provisions of the Agreem ent.

--- URL: https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/ MSCResolutions/MSC.571(109).pdf that purpose and may wish to use it when implementing th e provisions of the Agreement.

1.

The Agreement allows the Administration to use gross tonnage (GT), as specified in regul ation I/1(2), in place of length (L) as the basis for measurement for all chapters.

2.

Each Party which avails itself of this possibility shall communicate to the Organization the reasons for that decision.

Progressive implementation (regulations I/1(4) to (5)) 3.1.4 It may not be possible for some countries to implement all of the measures of the Agreement at the same time.

3.1.5 A Party to the Agreement that has concluded it is not immediately possible to impl ement all of the measures provided for in chapters VII, VIII, IX and X on existing vesse ls may progressively implement those measures in accordance with a plan.

The provisions of chapter IX may be implemented over a period of no more than 10 years , the provisions of --- URL: https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/Inde xofIMOResolutions/MSCResolutions/MSC.571(109).pdf chapter IX may be implemented over a p eriod of no more than 10 years , the provisions of chapters VII, VIII and X over a perio d of no more than five years.

3.1.6 A "Party" is defined in the Agreement as a State for which the Agreement has enter ed into force (article 2(a) of the 1993 Torremolinos Protocol).

As the term "Party" is used in the provisions concerning the progressive implementation (regulation I/1(4) to (5)) instead of the term "Administration", it indicates that these provisions will only apply when the Agreement comes into force for the State.

3.1.7 Therefore, for a State which deposits an instrument of ratification, acceptance , approval or accession, as appropriate, prior to the entry into force of the Agreement, t he above-mentioned progressive implementation period will only start running when the Ag reement comes into force for that State.

3.1.8 Each Party which avails itself of this possibility shall in its first communicatio n to the --- URL: https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMORes olutions/MSCResolutions/MSC.571(109).pdf Agreement comes into force for that State.

3.1.8 Each Party which avails itself of this possibility shall in its first communicatio n to the Organization provide the information that is specified in regulation I/1(5).

MSC RESOLUTION MSC.571(109) (adopted on 6 December 2024) INTERIM GUIDANCE TO ASSIST IN T HE IMPLEMENTATION OF THE CAPE TOWN AGREEMENT OF 2012 MSC 109/22/Add.2 Annex 25, page 12 I:\MSC\109\WP\MSC 109-22-Add.2.docx 3.1.9 The following table provides a summary of the application of the provisions of the Agreement, including the phased implementation (pro gressive implementation) on existing vessels.

TABLE 1: APPLICATION – SUMMARY Chapter Application 1) New vessels 2) Existing vessels 24 -45 m or 300-950 GT ≥45 m or ≥950 GT 24-45 m or 300-950 GT ≥45m or ≥950 GT Time to imple ment after entry into force 3) I General 4) 4) 0 years II Construction N/A III Stability N/A IV Machinery N/A V Fire safety --- URL: https://wwwcdn.imo.org/localresources/en/Kno wledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf 3) I General 4) 4) 0 years II Construction N/A III Stability N/A IV Machinery N/A V Fire safety N/A VI Crew p rotection N/A VII Life-savings appliances 5) ≤ 5 years VIII Emergency procedures ≤ 5 yea rs IX Radiocommunications ≤ 10 years X Navigational equipment ≤ 5 years Notes: 1) The fl ag Administration may decide to use gross tonnage (GT) in place of vessel length (L) as the basis for measurements for all chapters (regulation I/1(2)).

2) A new vessel is a vessel built after the entry into force of the Agreement (regulatio
n I/2(1)).

3) A Party may, in accordance with a plan, progressively implement the provisions of cha
pters VII, VIII, IX and X on existing vessels (regulation I/1(4) to (5)).

4) The only requirements of chapter I that apply to existing vessels are in regulations
I/2 to 5.

5) The only requirements of chapter VII that apply to existing vessels concern handheld
VHFs and --- URL: https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMORes
olutions/MSCResolutions/MSC.571(109).pdf 5) The only requirements of chapter VII that ap
ply to existing vessels concern handheld VHFs and radar transponders (regulations VII/1(
2) and VII/13 to 14).

Exemptions (regulation I/3) 3.1.10 The Agreement offers several possibilities to Adminis
trations to exempt vessels from its requirements.

3.1.11 Administrations may exempt any vessel which embodies features of a novel kind fro
m any of the requirements of chapters II, III, IV, V, VI and VII according to conditions
provided in regulation I/3(1).

The particulars of such exemptions, to the extent necessary to confirm that the level of
safety is adequately maintained, shall be communicated to the Organization.

Regulations I/3(1) and I/3(4) provide further details on this.

3.1.12 Exemptions from the requirements of chapter IX are dealt with in regulation IX/3
and exemptions from chapter X are dealt with in regulation X/2.

The particulars of such exemptions, to --- URL: https://wwwcdn.imo.org/localresources/en
/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf exemptions from c
hapter X are dealt with in regulation X/2.

The particulars of such exemptions, to the extent necessary to confirm that the level of
safety is adequately maintained, shall be communicated to the Organization.

Regulations I/3(2) and I/3(4) provide further details on this.

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HE IMPLEMENTATION OF THE CAPE TOWN AGREEMENT OF 2012 MSC 109/22/Add.2 Annex 25, page 13
I:\MSC\109\WP\MSC 109-22-Add.2.docx 3.1.13 Administrations may exempt any vessel from an
y of the requirements of any chapter of the Agreement, if they consider that the applica
tion is unreasonable and impracticable in view of the type of vessel, the weather condit
ions and the absence of general navigational hazards, provided: .1 the vessel complies w
ith adequate safety requirements for the service for which it is intended and are such a
s to ensure the overall safety of the vessel and persons on board; --- URL: https://wwwc
dn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.57
1(109).pdf it is intended and are such as to ensure the overall safety of the vessel and
persons on board; .2 the vessel is operating solely in: (i) a common fishing zone under
the jurisdiction of neighbouring States; or ii) the EEZ of the flag State; or (iii) the
EEZ or a marine area under the jurisdiction of another State, in accordance with an agre
ement between the States concerned in accordance with international law; and .3 the Admi
nistrations notify the Organization of the terms and conditions on which such exemption
is granted.

3.1.14 Regulation I/3(3) provides more detailed information on this.

Equivalents (regulation I/4) 3.1.15 Instead of following the requirements of the Agreeme
nt regarding a particular fitting, material, appliance or apparatus, or type thereof, to
be fitted or carried in a vessel, the Agreement permits the Administration to allow equi
valents.

This is if the Administration is satisfied by trial --- URL: https://wwwcdn.imo.org/loca
lresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf perm
its the Administration to allow equivalents.

This is if the Administration is satisfied by trial thereof or otherwise that an equival
ent is at least as effective.

The particulars of such equivalents, together with a report on any trials made, shall be
communicated to the Organization.

Regulation I/4 provides further details on this.

Repairs, alterations and modifications (regulation I/5) 3.1.16 A vessel that undergoes r
epairs, alterations, modifications and related outfitting shall continue to comply with

at least the requirements previously applicable to the vessel.

3.1.17 Repairs, alterations and modifications of a major character and related outfittin
g shall meet the requirements for a new vessel only to the extent of such repairs, alter
ations and modifications and as the Administration deems reasonable and practicable.

3.1.18 "Repairs, alterations and modifications of a major character" is understood, by w
ay of examples: --- URL: https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/Indexo
fIMOResolutions/MSCResolutions/MSC.571(109).pdf 3.1.18 "Repairs, alterations and modific
ations of a major character" is understood, by way of examples: .1 any change that subst
antially alters the dimensions of a vessel, e.g.

lengthening by adding new mid-body; or .2 any change that substantially increases the ef
ficiency of a vessel and/or prolongs the vessel's service life, e.g.: .1 renewal of more
than 50% of crew accommodations; .2 renewal of propulsion machinery and/or wheelhouse; .
3 renewal of deck machinery and/or winch system; .4 renewal of fish processing equipment
; and .5 renewal of refrigeration systems for the preservation of the catch.

3.1.19 Regulation I/5 provides further details on this.

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HE IMPLEMENTATION OF THE CAPE TOWN AGREEMENT OF 2012 MSC 109/22/Add.2 Annex 25, page 14
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MSC 109-22-Add.2.docx Summary assistance table for implementation Regulation to implemen
t Content III Code (resolution A.1070(28)) Supportive tools Function Implementation refe
rence Regulation I/1 Application Flag State Part 1 – Common areas, paragraph 6.1 Part 2
– Flag States, paragraphs 15.1, 16.1 and 22.1 to .2 National standards developed for the
implementation of SOLAS 1974 may be useful for these items Regulation I/2 Definitions Re
gulation I/3 Exemptions Regulation I/4 Equivalents Regulation I/5 Repairs, alterations a
nd modifications 3.2 Surveys and certificates (regulations I/6 to 17) 3.2.1 Application:
Unless expressly provided otherwise, the provisions of chapter I apply to new vessels.

Notes: 1.

Administrations may entrust the inspections and surveys either to surveyors nominated fo
r the purpose or to organizations recognized by it (regulation I/6(1)).

--- URL: https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/
MSCResolutions/MSC.571(109).pdf purpose or to organizations recognized by it (regulation
I/6(1)).

2.

Administrations may exempt vessels from the annual surveys if it considers the applicati
on is unreasonable and impracticable and expand the "time window" of the periodical and
intermediate surveys (regulation I/1(6), 7(1)(c), 8(1)(c) and 9(1)(c)).

CHAPTER I SURVEYS AND CERTIFICATES – SUMMARY 3.2.2 Chapter I also deals with survey and
certification requirements.

It makes provisions for: .1 inspections and surveys and the nomination of surveyors or r
ecognized organizations by the Administration (regulation 6); .2 surveys on the life -sa
ving appliances and other emergency equipment (regulation 7); .3 survey on the radio ins
tallations (regulation 8); .4 survey on the structure, machinery and other equipment (re
gulation 9); .5 maintenance of the condition of the vessel and its equipment after surve
y (regulation 10); and --- URL: https://wwwcdn.imo.org/localresources/en/KnowledgeCentre
/IndexofIMOResolutions/MSCResolutions/MSC.571(109).pdf .5 maintenance of the condition o
f the vessel and its equipment after survey (regulation 10); and .6 issuance of certific
ates, duration, forms of certificates and their acceptance, as well as certification and
accompanying privileges (regulations 11 to 17).

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er 2024) INTERIM GUIDANCE TO ASSIST IN THE IMPLEMENTATION OF THE CAPE TOWN AGREEMENT OF
2012 THE MARITIME SAFETY COMMITTEE, RECALLING article 28(b) of the Convention on the Int
ernational Maritime Organization concerning the functions of the Committee, RECALLING AL
SO that the International Conference on the Safety of Fishing Vessels, 2012 (the Confere

nce) had adopted the Cape Town Agreement of 2012 on the Implementation of the Provisions of the Torremolinos Protocol of